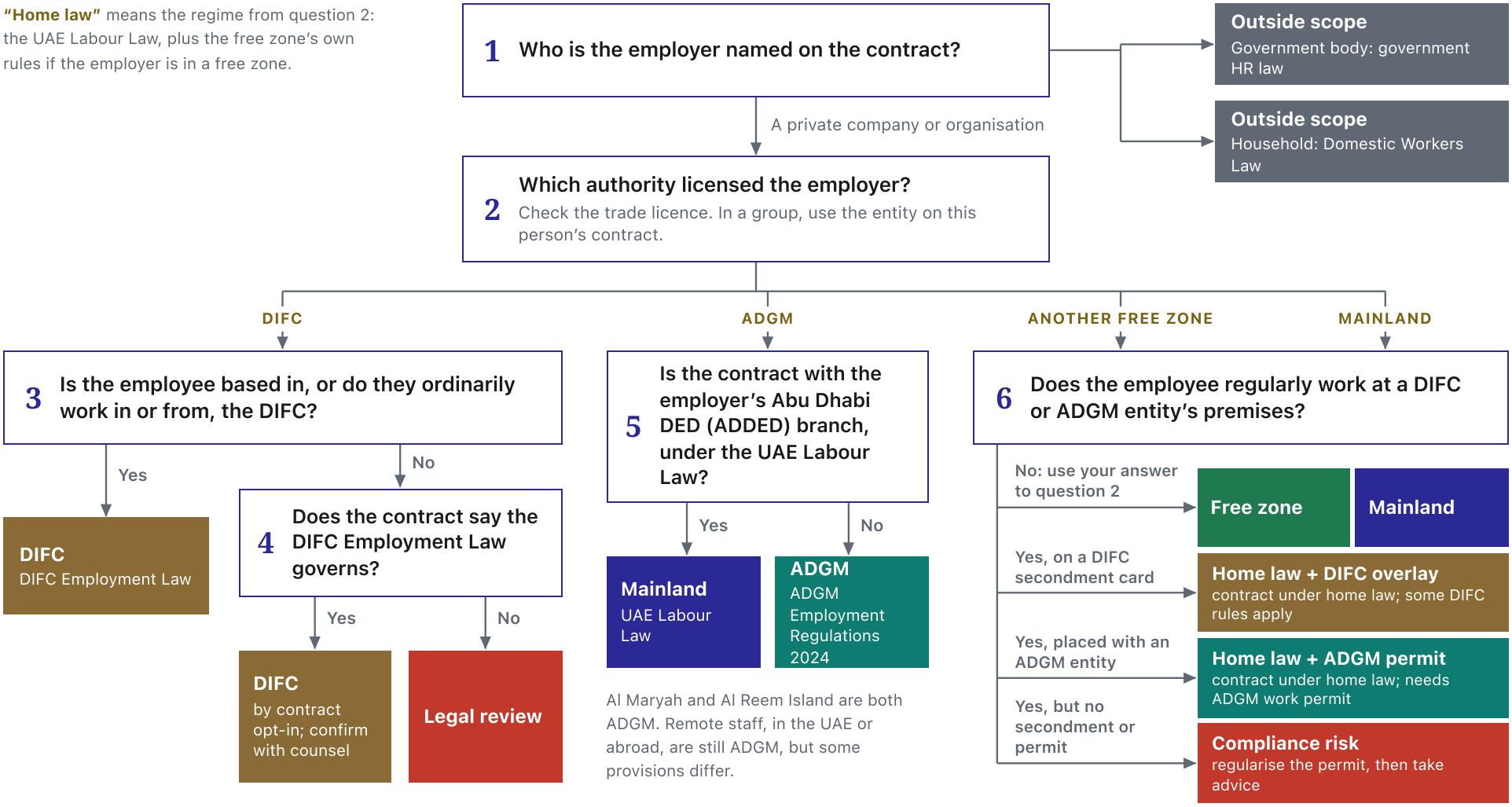
Which UAE employment regime applies to this employee?

Start at question 1 and follow the arrows. Coloured blocks are outcomes. Pages 3 and 4 explain what each outcome means.

"Home law" means the regime from question 2: the UAE Labour Law, plus the free zone's own rules if the employer is in a free zone.



Using the decision tree

Not sure who licensed the employer?

For question 2.

1. The trade licence or certificate of incorporation names the issuing authority in its header.
2. A MOHRE work permit and MOHRE-registered labour contract means mainland.
3. Free zone, DIFC and ADGM staff get their permit or employment card from that zone's authority.
4. Office on Al Reem Island? Many businesses there moved from ADDED to ADGM licences after 2023. Check the current licence.
5. Your PRO or government-relations team can usually confirm quickly.

What each outcome means

The four main regimes.

OUTCOME	GOVERNING LAW	PERMITS AND VISAS	DISPUTES GO TO	WATCH OUT FOR
Mainland	UAE Labour Law: Federal Decree-Law No. 33 of 2021 and Cabinet Resolution No. 1 of 2022.	MOHRE work permit and registered labour contract.	MOHRE first. If not settled, referred to the emirate's Labour Court.	Claims generally time-barred one year after employment ends. Emiratisation targets may apply by headcount and sector.
Free zone	UAE Labour Law, alongside the free zone's own employment regulations or rules.	The free zone authority, not MOHRE.	Usually the free zone authority's employee relations team first, then the onshore courts.	Check the zone's own rulebook (e.g. DMCC, JAFZA). One-year limitation under the Labour Law.
DIFC	DIFC Employment Law, DIFC Law No. 2 of 2019 (as amended).	Employment card and visa through DIFC government services.	DIFC Courts. Smaller claims go to the Small Claims Tribunal.	Claims must be filed within six months of termination. End of service via DEWS or another qualifying scheme. Opt-in contracts for staff based elsewhere: confirm with counsel.
ADGM	ADGM Employment Regulations 2024. Covers Al Maryah and Al Reem Island.	ADGM Registration Authority work permit. Remote staff outside the UAE need no UAE visa or ADGM permit.	ADGM Courts. The ADGM Employment Affairs Office can advise first.	Remote staff are covered but some provisions don't apply. Older Al Reem contracts: check the jurisdiction clause. Staff abroad: local law may also apply.

Overlays, reviews and out-of-scope cases

Outcomes from questions 1, 4 and 6.

OUTCOME	GOVERNING LAW	PERMITS AND VISAS	DISPUTES GO TO	WATCH OUT FOR
Home law + DIFC overlay	Contract stays under home law. Specified DIFC Employment Law provisions also apply during the secondment (Article 4(3)).	DIFC secondment card. Visa stays with the home employer.	Depends on the claim. DIFC Courts have heard secondment disputes. Take advice.	A valid secondment is between a DIFC entity and a UAE entity outside the DIFC. If the person is later hired by the DIFC entity, run the tree again.
Home law + ADGM permit	Contract stays under home law.	ADGM authorisation to work on site, e.g. a temporary work permit. Confirm with ADGM.	Home regime's forum for contract claims.	Ask the ADGM Employment Affairs Office to confirm the right permit.
Legal review / compliance risk	Unclear. May be the law of where the person actually works.	Check who sponsors the visa and where the permit was issued.	Don't file or respond to a claim until the regime is settled.	Working in DIFC or ADGM without a secondment card or permit risks fines for both entities. Fix that first.
Outside scope	Government body: federal or emirate government HR law. Household: Domestic Workers Law (Federal Decree-Law No. 9 of 2022).	Government entity's HR, or MOHRE for domestic workers.	Per the applicable law.	Government-owned companies that trade commercially are usually private-sector employers. If so, restart at question 1.

HR triage guidance only, not legal advice. Based on the UAE Labour Law (Federal Decree-Law No. 33 of 2021), DIFC Employment Law (DIFC Law No. 2 of 2019, as amended) and ADGM Employment Regulations 2024, as understood in November 2026. Laws and free zone rules change, so check for updates before relying on this guide. Unusual arrangements should go to legal counsel.